

TENTATIVE RULINGS for LAW and MOTION

June 26, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Two

(530) 406-6787

TENTATIVE RULING

Case: **RoseBloom Associates, L.P. v. Olson**
 Case No. CV2026-1584

Hearing Date: **June 26, 2026** **Department Two** **1:30 p.m.**

Defendant Tara Olson’s request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (c) and (h), 453.)

Defendant’s demurrer to plaintiff RoseBloom Associates, L.P.’s complaint is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) Based on the complaint and matters judicially noticeable, plaintiff is a covered housing provider under the Violence Against Women Act (“VAWA”). (34 U.S.C.A. § 12491, subds. (a)(3)(P); 24 C.F.R. § 5.2003; Complaint, ¶¶ 1 & 3; Defendant’s RJN.) Therefore, plaintiff is required to plead in its complaint that it served defendant with the VAWA Notice of Occupancy Rights (form HUD-5380) along with the eviction notice attached to the complaint. (24 C.F.R. § 5.2005, subds. (a)(1), (a)(2)(iii); Complaint, ¶ 9(e), Exhibit 2.) The eviction notice attached to the complaint did not include the VAWA Notice of Occupancy Rights and “therefore, cannot support an action for unlawful detainer.” (*DHI Cherry Glen Associates, L.P. v. Gutierrez*, (2019) 46 Cal.App.5th Supp. 1, 10.)

As the Court is sustaining with leave to amend defendant’s demurrer, defendant’s request to dismiss is **DENIED**. (Code Civ. Proc., § 581, subd. (f)(1).)

Plaintiff shall file an amended complaint no later than **July 1, 2026**. (Cal. Rules of Court, rule 3.1320, subd. (g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sunset Village v. McGinnis**
 Case No. CV2026-1607

Hearing Date: **June 26, 2026** **Department Two** **1:30 p.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Sunset Village v. Wilson**
Case No. CV2026-1608

Hearing Date: **June 26, 2026** **Department Two** **1:30 p.m.**

Defendant Joseph Wilson's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (c) and (h), 453.)

Defendant's demurrer to plaintiff Sunset Village's complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to show, through matters on the face of the complaint or judicially noticeable, that plaintiff's complaint does not state facts sufficient to constitute a cause of action. (*Ibid.*; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see also *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Defendant has failed to show that the person named on the notice is a corporation. (*City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 81-82.)

As the Court is overruling defendant's demurrer, defendant's request to dismiss is **DENIED**. (Code Civ. Proc., § 581, subd. (f)(1).)

Defendant is ordered to file their answer by **July 1, 2026**. (Code Civ. Proc., §§ 586, subd. (a)(2), 1167.3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.